

TENTATIVE RULING(S) FOR August 26, 2026

Department S37 – Judge Winston Keh

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CIVSB2602496

Ruiz v. Tropicale Food

TENTATIVE RULING(S):

I. INTRODUCTION

Defendant filed the instant Motion to Compel Arbitration, supported by the declarations of Mark S. Askanas and Maria Rubio. Plaintiff opposes the Motion, and Defendant has filed a reply. For the reasons set forth below, the Court **OVERRULES Plaintiff's evidentiary objections and GRANTS Defendant's Motion to Compel Arbitration.** The Court further orders the action stayed pending completion of arbitration.

II. DISCUSSION

A. Evidentiary Objections

Plaintiff submits four objections to the declaration of Maria Rubio. The objections are

OVERRULED.

Plaintiff's objections essentially concern the authenticity of the arbitration agreement and the circumstances under which Plaintiff agreed to arbitrate. California Rules of Court, rule 3.1330 requires a petition to compel arbitration to state verbatim the provisions of the written agreement providing for arbitration or to attach and incorporate a copy of the agreement. The rule does not require the petitioner, at the pleading stage, to authenticate the agreement through the ordinary evidentiary procedures applicable at trial. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218–219.) Once the petitioner alleges the existence of the agreement and provides the agreement or its relevant provisions, the burden shifts to the opposing party to establish that the purported agreement is not genuine or otherwise is unenforceable. (*Id.* at p. 219.)

Here, Defendant has submitted a copy of the Agreement bearing Plaintiff's signature, together with the Rubio Declaration explaining the circumstances under which the Agreement was maintained in Defendant's employment records. Plaintiff does not materially dispute that the signature appearing on the Agreement is hers. Rather, Plaintiff states that she does not recall signing the Agreement and did not understand that she was agreeing to arbitration. A lack of recollection, standing alone, does not establish that Plaintiff did not execute the Agreement. Accordingly, the Court finds that Defendant has sufficiently established the existence of a written arbitration agreement between the parties.

B. Analysis

1. The FAA Applies

The FAA applies to arbitration agreements involving interstate commerce. (9 U.S.C. § 2.)

Defendant bears the burden of establishing FAA coverage.

Maria Rubio, Defendant's Vice President of Human Resources, declares that Defendant manufactures and distributes Mexican-inspired paletas and ice-cream products under the Helados Mexico and La Michoacana brands. Defendant conducts its operations through manufacturing facilities and distributes its products to stores throughout the United States.

(Rubio Decl. ¶¶ 3–4.) This evidence establishes that Defendant's business activities involve interstate commerce.

In addition, the Agreement expressly provides that disputes are to be submitted to binding arbitration “under the Federal Arbitration Act (‘FAA’).” The parties therefore expressly selected the FAA to govern their arbitration agreement.

The FAA applies.

2. An Enforceable Arbitration Agreement Exists and Covers Plaintiff's Claims

Defendant has established the existence of a written arbitration agreement signed by Plaintiff.

The Agreement provides, in pertinent part, that Plaintiff and Defendant agree to utilize “binding individual arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to my employment.” It further provides that claims between Plaintiff and Defendant “shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act (‘FAA’), in conformity with the procedures of the California Arbitration Act.”

The Agreement further provides that its scope includes disputes based on “tort, negligence, contract, statute,” including claims of discrimination, harassment, and retaliation under state or federal law. Certain expressly identified matters are excluded, including claims arising under the National Labor Relations Act brought before the National Labor Relations Board, claims for medical and disability benefits under the California Workers' Compensation Act, Employment Development Department claims, and claims otherwise not subject to arbitration under applicable law.

Plaintiff's claims fall within the Agreement's broad language concerning disputes arising out of or relating to her employment. Plaintiff does not materially dispute that her asserted claims fall within the Agreement's scope.

The Court therefore finds that the parties entered into an arbitration agreement and that the Agreement covers the claims asserted in this action.

3. Plaintiff Has Not Established Unconscionability

Plaintiff's principal defense is that the Agreement is unconscionable.

Under California law, unconscionability has both procedural and substantive components. Procedural unconscionability concerns oppression or surprise in the formation of the contract, while substantive unconscionability concerns whether the contract's terms impose overly harsh or one-sided results. Both elements must generally be present, although they need not be present to the same degree. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493.)

a. Procedural Unconscionability

Plaintiff argues that the Agreement was presented through surprise and oppression. She points to the document's title, "EMPLOYEE ACKNOWLEDGEMENT AND AGREEMENT," and the fact that its first paragraph concerns at-will employment rather than arbitration. She further declares that she does not recall signing the Agreement, that no one explained it to her, and that she would have assumed she was merely acknowledging receipt of the employee handbook.

The Court finds some degree of procedural unconscionability, but only to a minimal degree.

The Agreement was presented in the employment context and was not shown to have been the product of individual negotiation. Such circumstances may support a finding of some procedural unconscionability. But the circumstances here are materially different from those in *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, where the Supreme Court found substantial oppression and surprise based on the manner in which the arbitration agreement was presented, the pressure to sign immediately, the lack of meaningful opportunity to review or consult counsel, and the unusually dense and difficult-to-read presentation of the arbitration provision.

Here, the Agreement was not shown to be comparably difficult to read or understand. The arbitration provision is identifiable and expressly states that the parties waive their respective rights to litigate covered disputes in court and agree to binding individual arbitration. Nor is there evidence that Plaintiff was threatened, rushed, denied an opportunity to review the document, or affirmatively misled about its contents. Plaintiff's inability to recall signing the Agreement likewise does not establish surprise or negate execution, particularly where the Agreement bears her signature and Plaintiff does not materially dispute that the signature is hers.

Accordingly, the Court finds only **minimal procedural unconscionability**.

b. Substantive Unconscionability

Plaintiff next argues that the Agreement is substantively unconscionable because it lacks mutuality, is silent concerning arbitration costs, contains no mechanism for initiating arbitration, permits Defendant to modify arbitration procedures, and allegedly encompasses disputes beyond the employment relationship.

These arguments do not establish substantive unconscionability.

First, the Agreement contains the requisite bilateral obligation to arbitrate. It provides that “both I and the Company agree” that claims Plaintiff may have against Defendant and claims Defendant may have against Plaintiff shall be submitted to arbitration. Thus, the Agreement does not impose arbitration solely upon Plaintiff while reserving Defendant a unilateral right to proceed in court. The agreement contains the “modicum of bilaterality” required by *Armendariz*. (24 Cal.4th at pp. 117–118.)

Second, the Agreement's silence concerning allocation of arbitration costs does not render it substantively unconscionable. *Armendariz* itself recognized that an employment arbitration agreement covering statutory claims implicitly requires the employer to bear arbitration costs unique to arbitration and that the absence of an express cost provision is not, by itself, a basis for refusing enforcement. (24 Cal.4th at p. 113; see also *Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1080–1082.) The Agreement therefore is not rendered unenforceable merely because it does not expressly allocate those costs.

Third, Plaintiff has not demonstrated that the Agreement is substantively unconscionable because it does not contain a particular mechanism for initiating arbitration. Plaintiff cites no persuasive authority establishing that the absence of such a provision renders an otherwise valid arbitration agreement unenforceable.

Fourth, Plaintiff's contention that Defendant may modify arbitration procedures is unsupported by a showing that Defendant possesses an unrestricted unilateral power to alter the substantive rights conferred by the Agreement or to defeat its mutuality. Plaintiff has not established that this provision creates an objectively unfair or one-sided result.

Finally, although the Agreement broadly covers disputes arising out of or related to Plaintiff's employment, the Court need not construe the phrase "related in any way" to extend the Agreement beyond disputes bearing a relationship to the employment relationship. To the extent Plaintiff identifies any potentially overbroad language, that language is severable under the Agreement's express severability provision. The Court therefore need not invalidate the arbitration agreement as a whole.

The Court also considers the California Supreme Court's recent guidance in *Ramirez*. That decision confirms that the inquiry into unconscionability is directed to the fairness of the agreement's terms and that courts should distinguish between an agreement whose central purpose is tainted by illegality and one containing isolated provisions that can be severed or limited. Here, Plaintiff has not established a substantively unconscionable term sufficient to invalidate the Agreement. Even assuming the Agreement contains some arguable procedural defect, the degree of procedural unconscionability is minimal and is not accompanied by substantively unconscionable terms. The Agreement therefore is not unconscionable.

D. No Other Defense to Enforcement Has Been Established

Plaintiff has not established that Defendant waived its right to compel arbitration. Nor has Plaintiff identified grounds for revocation of the Agreement independent of her unconscionability argument. The Court therefore finds no basis under Code of Civil Procedure section 1281.2 to deny enforcement. Since Defendant has established the existence of an enforceable arbitration agreement covering Plaintiff's claims, the Court must compel arbitration.

E. Stay of Proceedings

Defendant also requests a stay of this action pending arbitration. Code of Civil Procedure section 1281.4 provides that when an application for an order compelling arbitration has been made concerning a controversy involved in a pending court action, the court shall stay the action upon motion until the application is determined and, if arbitration is ordered, until the arbitration is completed, subject to the statutory provisions concerning a severable controversy.

Because the Court is ordering the parties to arbitrate the claims asserted in this action, the action shall be stayed pending completion of arbitration.

III. RULING AND ORDER

For the foregoing reasons, Defendant's Motion to Compel Arbitration is **GRANTED**.

The Court hereby ORDERS as follows:

1. **Plaintiff's four evidentiary objections to the declaration of Maria Rubio are OVERRULED.**
2. The Court finds that Plaintiff and Defendant entered into a valid and enforceable written arbitration agreement.
3. The Court finds that the FAA applies to the Agreement.
4. The Court finds that the claims asserted by Plaintiff in this action fall within the scope of the Agreement.
5. **Plaintiff and Defendant are ORDERED to submit the claims asserted in this action to binding individual arbitration in accordance with the terms of their Agreement.**
6. The parties shall proceed with arbitration in accordance with the Agreement and applicable law.
7. Pursuant to Code of Civil Procedure section 1281.4, this action is **STAYED pending completion of arbitration**, or until further order of the Court.
8. The Court retains jurisdiction to enforce the arbitration order and to address any further matters properly presented following completion of the arbitration.

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CIVSB2314282

Murphy vs Desert Inn Motel (highly recommended)

TENTATIVE RULING(S):

Before the Court is Defendants' Motion to Tax Costs. The Motion seeks to tax costs from the Memorandum of Costs filed by Plaintiff on May 8, 2026. Plaintiff filed an Opposition supported by the declarations of Germain Labat and Tomas Ross. No reply has been filed as of August 20, 2026.

Having considered the moving and opposing papers, the declarations submitted, and the

I. Court Reporter Fees

Moving Defendants request the court strike \$42,849.50 in court reporter fees. While statutory court reporter fees are allowable under section 1033.5, transcripts of court proceedings not

ordered by the court are not allowable unless expressly authorized by law. (Code Civ. Proc., § 1033.5, subd. (a)(11) and (b)(5).)

Plaintiff contends that these transcripts were essential at trial and were reasonably incurred to protect his rights for post-trial litigation or appellate review. However, Plaintiff fails to cite a specific statute or court order that expressly authorizes these costs. Under section 1033.5, subdivision (b)(5), transcripts are not allowable as costs unless ordered by the court.

Accordingly, the Court grants the request to strike the \$42,849.50 in court reporter fees.

II. Other Fees

Items not mentioned in section 1033.5 and items assessed upon application may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Moving Defendants dispute \$49,841.59 in "other fees" and \$11,300.50 in costs for food, lodging, gas, and cleaning. Regarding the prejudgment interest of \$35,155.18, Plaintiff asserts entitlement pursuant to a section 998 offer made on January 13, 2026. The jury subsequently returned a verdict of \$1,734,000, significantly exceeding the \$500,000 offer. The Court finds that Plaintiff's section 998 settlement offer was made in good faith and that he has made a prima facie showing of such by prevailing at trial for a sum significantly greater than the offer. Consequently, Plaintiff is entitled to prejudgment interest at the legal rate of ten percent per annum. (Code Civ. Proc., §§ 998, 3291.) The request to strike this \$35,155.18 is denied.

Regarding the remaining disputed \$14,326.41 and \$11,300.50, the burden is on the Plaintiff to justify these costs by providing evidence that they were reasonable and necessarily incurred.

(*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Plaintiff argues that these costs—including hotel, rental car, and gas—were necessary because former trial counsel, Tomas Ross, did not reside or maintain an office in San Bernardino County. The Court finds that the declaration of Labat fails to provide sufficient information to determine if these costs were reasonable and necessary; rather, they appear to have been incurred for convenience.

Accordingly, the Court strikes the \$14,326.41 and the \$11,300.50 in other costs.

III. Attorney's Fees

Moving Defendants dispute \$3,800 in attorney's fees for outside counsel. Plaintiff has waived this cost claim in his Opposition. Accordingly, the Court strikes the \$3,800 in attorney's fees.

RULING

For the reasons stated above, the Court rules as follows:

1. Moving Defendants' Motion to Tax Costs is granted in part.
2. The following amounts are struck from Plaintiff's Memorandum of Costs:
 - \$42,849.50 (Court reporter fees)
 - \$14,326.41 (Other costs)
 - \$11,300.50 (Other costs)
 - \$3,800.00 (Attorney's fees)
 - Total Struck: \$72,276.41

The Court grants the remaining \$74,567.80 in requested costs.

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CIVSB2517199

Olivas vs TA Operating

TENTATIVE RULING(S):

On December 22, 2025, Defendant TA Operating LLC's (Defendant or TA) filed the instant Motion to Compel Arbitration (Motion), supported by a Request for Judicial Notice and declarations from Eric J. Gitig (Gitig) and Pam Major (Major). Plaintiff Gregory Olivas (Plaintiff) filed his Opposition to the Motion (Opposition) on May 1, 2026, along with a declaration from the Plaintiff and Evidentiary Objections. Defendant filed its Reply on May 7, 2026, along with a Notice of Errata, Evidentiary Objections, a Response to Plaintiff's Evidentiary Objections and a supplemental declaration from Gitig. On May 8, 2026, Plaintiff filed Plaintiff's Evidentiary Objections to Defendant's Reply.

A. Request for Judicial Notice

TA requests the court take judicial notice of four trial court orders in other cases filed against the Defendant in the San Bernardino Superior Court, attached as Exhibits 1-4, pursuant to Evidence Code section 452, subdivision (d).

Evidence Code section 452 states, in pertinent part, as follows:

Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451:

(d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.

A court may judicially notice a variety of matters, only relevant material is subject to such excused burden of evidentiary proof, and the court should decline judicial notice of material “that has no bearing on the limited legal question at hand.” (*Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063 (citing, *People v. Stoll* (1989) 49 Cal.3d 1136, 1144, fn. 5.)

In the case of court records, not all matters contained therein (e.g., pleadings, affidavits, etc.) are indisputably true. While the existence of any document in a court file may be judicially noticed, the truth of matters asserted in such documents – including the factual findings of the judge who was sitting as the trier of fact – is not necessarily subject to judicial notice unless the document is an order, statement of decision, or judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569; *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22.)

The four orders concern other cases filed against Defendant and have no precedential value.

Defendant has not established that the orders have a bearing on the limited legal questions presented by the instant Motion. The existence of those orders is not necessary to resolution of whether Plaintiff entered into an arbitration agreement with Defendant or whether the parties’ Agreement contains an enforceable delegation provision.

Accordingly, Defendant’s Request for Judicial Notice is DENIED.

B. Evidentiary Objections

i. Plaintiff’s Objections

Plaintiff files seventeen objections to the declaration of Major filed in support of Defendant's Motion. Specifically, Plaintiff objects to paragraphs 6-15, 18, 18(a), 18(b), 18(e), 18(e)(i), 18(e)(ii) and 19 on the grounds that the statements made in these paragraphs are irrelevant, lack foundation or personal knowledge, are speculative or constitute improper legal opinions, constitute hearsay or lack proper authentication.

Defendant argues in its response that foundation requirements may be inferred from the circumstances and argues Major sufficiently provides support for the declaration indicating she is employed as Lead HRIS Solutions Analyst for TA and is its custodian of records, responsible for maintaining custody of the original employment files for Defendant's employees. Defendant argues the lack of the phrase "true and correct copy" is not fatal as the declaration sufficiently identifies the document, explains its origin, and ties it to Defendant's business practices.

Major identifies her position as Lead HRIS Solutions Analyst for TA and explains her responsibility for maintaining custody of Defendant's employment files. Her declaration further describes the Cornerstone onboarding system, the manner in which applicants access the system, the use of unique usernames and passwords, the transmission of onboarding documents, and the circumstances under which Plaintiff accessed and electronically signed the documents at issue.

The declaration therefore provides an adequate foundation for the evidence offered concerning the electronic onboarding process and Plaintiff's electronic signature. Plaintiff's objections principally challenge the weight and sufficiency of the evidence rather than establish a basis for excluding it altogether.

Accordingly, Plaintiff's objections are OVERRULED.

ii. Defendant's Objections

Along with its Reply, Defendant files six objections to the declaration of the Plaintiff. Specifically, Defendant objects to paragraphs 3, 4, 5, 6, 7 and 8 on the grounds that the subject statements are vague and ambiguous, irrelevant, conclusory, constitute an inadmissible opinion testimony or are otherwise, prejudicial and speculative.

The challenged statements concern Plaintiff's recollection of the onboarding process, his understanding of the documents presented to him, and whether he recalls signing the Agreement. These matters are relevant to the factual dispute concerning formation and authentication of the arbitration agreement. Defendant's objections principally concern the weight to be afforded Plaintiff's testimony rather than its admissibility.

Accordingly, Defendant's objections are OVERRULED.

C. Plaintiff's Objections to Defendant's Reply Evidence

Plaintiff filed objections to statements made in the declaration of Gitig filed with Defendant's Reply as well as to Defendant's Notice of Errata. Plaintiff argues the subject documents constitutes new evidence filed in reply and cites to cases such as *Jack v. Ring LLC* (2023) 186 forApp.5th 1186 for authority that the general rule is that new evidence is not permitted with reply papers. Plaintiff argues styling the instant evidence as an "errata" does not change its character or cure the prejudice to Plaintiff.

The Court finds Plaintiff's argument unpersuasive because it conflates rebuttal evidence with truly new evidence.

"The general rule of motion practice...is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *Espejo v. SCPMG* (2016) 246 Cal.App.4th 1047 [*Espejo*]; *Ruiz v. Moss* (2014) 232 Cal.App.4th 836 [*Ruiz*].) However, a trial court is "vested with a sound discretion as to the permissible scope of evidence offered in rebuttal." (*Tesoro del Valle Master Homeowners Assn. v. Griffin* (2011) 200 Cal.App.4th 619, 641.) Under Evidence Code section 210, relevant evidence is evidence that tends to prove or disprove any disputed fact that is of consequence to the determination of the action.

The Court finds the Court of Appeals holding in *Ruiz* to be instructive here. In *Ruiz*, the plaintiff also requested the court decline to consider defendant's reply evidence, a supplemental declaration. In *Ruiz*, however, the defendant sought to compel arbitration based on the existence of a 2011 arbitration agreement. (*Id.* at 839.) Because plaintiff presented a factual dispute as to the authenticity of her signature in opposition, in reply, defendant adduced the 2010 arbitration to argue its petition should be granted based on the 2010 arbitration agreement. (*Id.* at 842.) The

Court of Appeal rejected this argument because grounds for relief first raised in reply papers in the trial court are not proper. (*Ibid.*)

The circumstances here are materially different. Defendant is not attempting to enforce a different arbitration agreement. Rather, Gitig's supplemental declaration, presenting Exhibits E-G, is rebuttal to Plaintiff's evidence that he does not recall signing the Agreement and the argument that there is no contractual relationship between Plaintiff and Defendant.

The supplemental evidence therefore responds directly to factual issues raised by Plaintiff in Opposition. It does not assert a new ground for relief or seek to enforce a different arbitration agreement.

The Court therefore OVERRULES Plaintiff's objections to Defendant's Notice of Errata and supplemental declaration of Gitig in their entirety and will consider the evidence filed concurrently with Defendant's Reply.

D. Motion to Compel Arbitration

i. Federal Arbitration Act (FAA)

Here, the Agreement states, in pertinent part, as follows:

"Federal Arbitration Act. The Parties acknowledge and agree that the Company is involved in transactions involving interstate commerce and that the Federal Arbitration Act shall govern any arbitration pursuant to this Agreement, including but not limited to the Agreement's scope, interpretation and application."

Defendant argues the FAA applies as the subject agreement expressly states this. Plaintiff does not specifically address this issue in their Opposition. As the subject agreement provides for the FAA to govern, then it governs. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-35.)

The Court therefore finds that the FAA applies.

ii. Contractual Relationship Between Plaintiff and Defendant

The threshold issue is whether Plaintiff and Defendant entered into an enforceable agreement to arbitrate.

Defendant contends Plaintiff electronically signed the Mutual Agreement to Resolve Disputes and Arbitrate Claims (the Agreement) as part of TA's standard onboarding process after being notified on multiple occasions that acceptance of the Agreement was a condition of his employment. As set forth in the declaration of Major, to access the onboarding documents on the Cornerstone system, Plaintiff created his own unique password that was only known to and could only be accessed/changed by the Plaintiff. On January 4, 2024, Plaintiff digitally signed the Agreement through TA's secure onboarding portal.

Plaintiff argues Defendant fails to establish that there is a valid arbitration agreement between the parties. Specifically, Plaintiff contends the "Acknowledgment" mechanism described by Major in her declaration does not "save its threshold failure to authenticate Plaintiff's purported electronic signature." Plaintiff contends the Agreement does not bear Plaintiff's signature and Defendant's Exhibit B is merely an acknowledgment relating to the NAM Rules, not the Agreement.

Plaintiff argues under the factors set forth under *Espejo*, Defendant fails to meet its burden to show the privacy of a unique username, the requirement of a password reset before access, the signature line containing the signatory's typed full name, the identification of the time of execution and the IP address identifying the location of execution. Plaintiff contends Major's declaration speaks only in generalities about the Cornerstone system and what an applicant "would have" done in the abstract.

TA replies, acknowledging the signature page was inadvertently omitted when filing the Motion as a result of an unintentional clerical error and argues this omission does not change the fact that Plaintiff signed the Agreement while completing TA's standard onboarding process or the Agreement's operative terms. TA argues when the complete Agreement is considered, which Plaintiff has long had, there is no genuine dispute that Plaintiff entered into a binding arbitration agreement. TA argues the omitted signature page is not new substantive matter; it is part of the Agreement already placed at issue by TA's motion and directly responds to Plaintiff's assertion that TA did not produce a signed arbitration agreement.

Defendant argues TA authenticated the Agreement and Plaintiff's electronic signature in its moving papers through the declaration of Major, TA's Lead HRIS Solutions Analyst. Further, Major provides a thorough step-by-step analysis of the transmittal of the onboarding documents, including the Agreement, to the Plaintiff through Cornerstone's Applicant Portal, which requires a unique username and password that is only known to and retrievable by the Plaintiff. Defendant argues under *Ruiz*, a dated electronic signature affixed through secure and unique login sufficient to authenticate an arbitration agreement.

The Court finds Defendant met its initial burden to show an agreement to arbitrate between TA and Plaintiff by attaching a copy of the purported arbitration agreement to the declaration of Major. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.)

In the declaration filed in support of his Opposition, Plaintiff declares that he does not remember being presented with the subject documents and denies signing them. Under *Ruiz*, Plaintiff sufficiently shifts the burden on TA to prove, by a preponderance of the evidence, that the electronic signature was authentic. (*Ruiz, supra*, 232 Cal.App.4th at p. 846.)

The Court finds Defendant has met this burden.

As set forth in the declaration of Major, TA required applicants to first register on Cornerstone by creating a unique username and password. Major declares an applicant's unique username and password would have been required anytime the applicant would have logged into the Applicant Portal for any reason, including to complete TA's hiring process and any of TA's onboarding documents.

Major further declares that on January 3, 2024, Plaintiff submitted an application to TA for a Porter – Part Time position and on January 4, 2024, a TA managerial employee changed Plaintiff's status from "applied" to "offer letter." Major states Plaintiff was then sent an email by Cornerstone, to the email address he registered with Cornerstone's Applicant Portal, opivagreg@gmail.com, which contained a secure weblink allowing him to access and complete his onboarding forms using Cornerstone's Applicant Portal.

Finally, Major states on January 4, 2024, at 1:58:30 p.m., Plaintiff logged into his Cornerstone Applicant Portal by using his unique username and password and electronically signed his offer letter.

Plaintiff argues Major's declaration is insufficient to authenticate Plaintiff's signature under the factors set forth under *Espejo*. The Court disagrees.

In *Espejo*, the Court of Appeals cites to Civil Code section 1633.9 to address how a proponent of an electronic signature may authenticate the signature. The statute states: "(a) An electronic record or electronic signature is attributable to a person if it was the act of the person. *The act of the person may be shown in any manner*, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (*Espejo, supra*, 246 Cal.App.4th at p.1061, citing Civ.Code, § 1633.9, subd. (a), italics added.)

While the factors set forth by Plaintiff are one way in which a movant may show an electronic signature was "an act" of the signatory, as clearly set forth under section 1633.9 of the Civil Code, there is no single manner to do so.

Here, Major sets forth in detail how Plaintiff signed up for a password protected account on Cornerstone, a third-party vendor, to apply for the position and sign various onboarding documents. Major further identifies the date and time Plaintiff accessed the Applicant Portal and electronically executed the relevant onboarding materials.

In contrast to *Ruiz* where the Court of Appeals held the moving party failed to explain how the plaintiff's printed electronic signature, or the date and time printed next to the signature, came to be placed on the subject agreement, Major's declaration sets forth how the printed electronic signature is indeed "the act" of the Plaintiff as required by Civil Code section 1633.9. (*Ruiz, supra*, 232 Cal.App.4th at pp. 843-44.)

The Court therefore finds, by a preponderance of the evidence, that Plaintiff electronically executed the Agreement on January 4, 2024.

Accordingly, a contractual relationship exists between Plaintiff and TA, and the parties entered into an agreement to arbitrate.

iii. Delegation Clause

Generally, the court determines the enforceability of an arbitration agreement. (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 781) (*Ajamian.*) Nonetheless, who decides an issue is a matter of party agreement. (*Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 243, overruled on other grounds per *Lamps Plus, Inc. v. Valera* (2019) 139 S.Ct. 1407, 1413, 1418-19 (*Sandquist*); *Ajamian, supra*, 203 Cal.App.4th at p. 781.) As the U.S. Supreme Court states, “Just as the arbitrability of the merits of a dispute depends upon whether the parties agreed to arbitrate that dispute, ..., so the question ‘who has the primary power to decide arbitrability’ turns upon what the parties agreed about that matter.” (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943 (*First Options*); *Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 68-69 (*Rent-A-Center*).) Thus, the starting point on determining who decides is the parties’ agreement. (*Sandquist, supra*, 1 Cal.5th at p. 243.)

“There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. (*Rent-A-Center, supra*, 561 U.S. at p. 69, fn. 1.) Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (*Id.* at p. 68; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th at p. 242, citing *Rent-A-Center, West, Inc. v. Jackson*, 561 U.S. 63)

“Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. [Citation.] They “can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration.” [Citation.]” (*Tiri v. Lucky Chances, Inc., supra*, 226 Cal.App.4th at 241.)

Defendant argues in its Motion that the Agreement contains a delegation clause that clearly and unmistakably delegated to the arbitrator the resolution of all arbitrability questions. Citing *First Options of Chi., Inc. v. Kaplan* (1995) 514 U.S. 938, 940, Defendant argues the arbitrator has exclusive jurisdiction here to decide any gateway issues regarding the Agreement.

In his Opposition, Plaintiff does not make any direct arguments as to the delegation clause except to argue that the Agreement cannot delegate anything until the court finds that there is a contract between the parties.

Defendant replies, arguing Plaintiff does not even attempt to argue the Agreement's delegation clause is not clear and unmistakable and as such, concedes the point. Defendant contends Plaintiff's argument that the delegation clause fails because no agreement exists is meritless as set forth above. Further, citing cases such as *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70–72, Defendant argues challenges to enforceability must be decided by the arbitrator unless the plaintiff specifically challenges the delegation clause itself. Here, Defendant argues no such challenge is made and as such, any remaining arguments, including Plaintiff's claims of unconscionability, must be resolved in arbitration.

The Court finds the Agreement contains an enforceable delegation clause.

Evidence that the parties intended such a delegation must be "clear and unmistakable" before a court will enforce a delegation provision. (*Mondragon v. Sunrun* (2024) 101 Cal.App.5th 592, 603.) The "clear and unmistakable" test reflects a heightened standard of proof that reverses the typical presumption in favor of the arbitration of disputes. (*Ibid.* Internal citations omitted).

Here, the Agreement states, in pertinent part:

"All challenges to the interpretation or enforceability of any provision of this Agreement shall be brought before the arbitrator, and the arbitrator shall rule on all questions regarding the interpretation and enforceability of this Agreement."

The language expressly assigns to the arbitrator questions concerning the interpretation and enforceability of the Agreement. It therefore constitutes clear and unmistakable evidence that the parties agreed to delegate arbitrability and enforceability questions to the arbitrator.

Plaintiff does not specifically challenge the delegation clause itself on the grounds of fraud, duress, unconscionability, or any other defense to its revocability. Plaintiff instead argues that the delegation clause cannot become operative until the Court determines that an agreement exists.

The Court has now determined that a contractual relationship exists between Plaintiff and TA and that Plaintiff executed the Agreement. Accordingly, the threshold issue concerning contract formation has been resolved. Since the Court finds that the parties entered into an Agreement containing a clear and unmistakable delegation clause, and because Plaintiff has not specifically

challenged the delegation clause itself, the Court will not decide Plaintiff's remaining challenges to the enforceability of the Agreement. Those challenges are delegated to the arbitrator pursuant to the parties' Agreement.

Accordingly, the Court declines to reach the merits of Plaintiff's remaining arguments regarding the enforceability of the Agreement and grants Defendant's request to compel Plaintiff's claims to arbitration.

III. Ruling

Based on the foregoing analysis, the Court rules as follows:

1. Defendant's Request for Judicial Notice is DENIED.
2. Plaintiff's evidentiary objections to the declaration of Major are OVERRULED in their entirety.
3. Defendant's evidentiary objections to the declaration of Plaintiff are OVERRULED in their entirety.
4. Plaintiff's objections to Defendant's Notice of Errata and supplemental declaration of Gitig are OVERRULED in their entirety.
5. The Court finds that Defendant has established by a preponderance of the evidence that Plaintiff electronically executed the Mutual Agreement to Resolve Disputes and Arbitrate Claims on January 4, 2024.
6. The Court finds that a contractual relationship exists between Plaintiff and Defendant and that the parties entered into an agreement to arbitrate.
7. The Court finds that the Federal Arbitration Act applies to the parties' Agreement.
8. The Court finds that the Agreement contains a clear and unmistakable delegation clause assigning to the arbitrator questions concerning the interpretation and enforceability of the Agreement.
9. The Court declines to reach Plaintiff's remaining challenges to the enforceability of the Agreement because those challenges have been delegated to the arbitrator and Plaintiff has not specifically challenged the delegation clause itself.
10. Defendant's Motion to Compel Arbitration is GRANTED.

11. Plaintiff's claims against Defendant are ORDERED to arbitration pursuant to the parties' Agreement.

12. The action is STAYED pending completion of arbitration pursuant to Code Civ. Proc., §1281.4; see also 9 U.S.C. §3. The Court's Stay Order applies only to moving defendant TA, not Defendant Richard Rodriguez (DOE 1). It does not appear that Mr. Rodriguez has been served.